

25STCV15642 25STCV15642

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 25STCV15642 Hearing Date: July 13, 2026 Dept: 529

SAM

SAYYAH VS FCA US LLC, ET AL.

MOTION TO COMPEL

INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE §871.26

Date

of Hearing: July 13, 2026 Trial Date: None set.

Department:

529 Case

No.: 25STCV15642

Moving

Party: Plaintiff Sam Sayyah

Responding

Party: Defendant FCA US LLC

BACKGROUND

This is a lemon law action. On May 29, 2025, Plaintiff Sam Sayyah filed a complaint against Defendants FCA US LLC AND Santa Monica Chrysler Jeep Dodge Ram for various violations of the Song-Beverly Consumer Warranty Act as well as negligent repair and fraudulent inducement. On October 30, 2025, Plaintiff filed a First Amended Complaint.

[TENTATIVE]

RULING:

Plaintiff's Motion to Compel Initial Disclosures

Pursuant to California Code of Civil Procedure §871.26 is DENIED.

DISCUSSION

Plaintiff Sam Sayyah moves this court for an order compelling Defendant FCA US LLC to comply with California Code of Civil Procedure section 871.26 by producing all documents required under subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13) and imposing mandatory sanctions against FCA US LLC and its counsel of record in the amount of \$2,500.00 pursuant to California Code of Civil Procedure § 871.26(j)(1).

Effective January 1, 2025, in an action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20 (above), the parties shall: "Within 60 days after the filing of the answer or other responsive pleading, ... without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h) [of Section 871.26]." (CCP § 871.26(b).)¿

Plaintiff argues FCA has failed to provide complete, verified, and unfiltered disclosures pursuant to Code of Civil Procedure section 871.26(h). As noted above, pursuant to Section 871.26(b), FCA was required to provide all mandatory initial disclosures within 60 days of filing its Answer — by October 14, 2025. However, as of the date of this motion, FCA has failed to produce any documents whatsoever under section 871.26(h). Plaintiff also maintains FCA has not provided written responses accompanied by verifications of defense counsel to the mandatory section 871.26(h) disclosures.

In opposition, FCA argues it served its initial disclosure production on October 14, 2025, in compliance with the due date and roughly seven months before Plaintiff's motion was served on June 13, 2026. That production included over 1,000 pages of materials, including the available repair records, warranty claims records, sales brochures, vehicle information detail report, glove box documents, the Monroney label, Technical Service Bulletins, and recalls applicable to the Subject Vehicle. (Gahan Decl. ¶ 4.) In advance of the production, FCA provided Plaintiff with a proposed Stipulation and Protective

Order. (Gahan Decl. ¶ 2, Ex. 1.) The parties eventually entered a protective order on June 3, 2026. (Gahan Decl. ¶6, Exh. 4.) FCA also notes it has now served written disclosures (although it disagrees that they are mandatory).

The court finds Plaintiff's requests for DealerConnect Report, AutoPay Claims, Complaint Claims as well as LOP records exceeds the scope of discovery required under Section 871.26. Moreover, Plaintiff contends FCA did not produce ISBs but FCA has stated there are none. The court further notes Plaintiff has not sufficiently demonstrated FCA must do an further search for these records.

Based on the foregoing, the motion to compel initial disclosures pursuant to California Code of Civil Procedure §871.26 is DENIED.

Sanctions

Plaintiff seeks \$2,500 in monetary sanctions pursuant to Code of Civil Procedure section 871.26(j)(1). Plaintiff's request for sanctions pursuant to Section 871.26(j)(1) is DENIED.